



PARAISO

DEL MAR

POLYGON A SUB-CONDOMINIUM REGIME MANAGER RULES

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INTRODUCTION

The following Manager Rules have been implemented by the Manager as provided for in section 9.15 of the Paraiso del Mar Master and Sub-condominium Rules and Regulations and are established and provided for the benefit of the single-family home residents and tenants alike. The rules are reasonable "rules for living" that must be enforced to ensure that the Houses and surroundings are a comfortable, secure and pleasant place to live.

The cooperation of all residents in observing these rules is necessary. Residents who deliberately or repeatedly violate the Rules and Regulations abuse the rights of others are subject to Association action.

All Association personnel have the authority to enforce the Rules and Regulations as set forth hereinafter.

POLYGON A MANAGER RULES

1. GENERAL

Any and all future property sales must be revised by the Home Owners Association attorney in order to make sure the proper language and wording is included in the property deed to ensure compliance of the condominium regime rules and regulations.

- a. No nuisances shall be allowed upon the property nor shall any use or practice be allowed which is a source of annoyance to residents or which interferes with the peaceful possession and proper use of the property by its residents.
- b. Unit Owners are prohibited from posting signs, signals, illuminations, symbols, advertisements, or any type of equipment or foreign objects on inside, or outside windows/terraces or doors. Any objects visible from a public or common area may be required to be moved out of view at the Association or Manager's request.
- c. No television or radio antenna or any type of receiving or transmitting antenna or structure shall be erected on the exterior of the Homes or on any lot without the prior written consent of the Manager.
- d. No home owner shall make or permit any disturbing noises in any unit or do or permit anything to be done therein, which will interfere with the rights, comforts or conveniences of other home owners.
- e. It is prohibited to hang garments, rugs, towels, etcetera, or to string clothes lines on any portion of the home, lot terraces, or common area, which may be seen from any portion of the common area.
- f. No resident of the development shall post any advertisement or poster of any kind including "For Sale" and "For Rent" signs in the home, on a lot or the common area except as authorized by the Manager.
- g. No Flags or banners are permitted to be displayed.
- h. Tag sales, garage sales, and lawn sales are not permitted on community property.
- i. Complaints regarding services provided in the community or the violation of Rules and Regulations contained herein or Master CC&R'S shall be made in writing to the Manager.
- j. The Association will not be held responsible/liable for the theft or damage caused to, a Unit Owner's personal property. The association recommends that each Unit Owner maintain insurance sufficient to cover for their personal property.
- k. Soliciting is prohibited on the Condominium property. The Association may designate an area, bulletin board, or newsletter which allow for advertising. Any

posting must be pre-approved by the Association. Any advertisement may be refused without reason/cause.

- l.** Unit owners agree not to participate in activities which are potentially hazardous to other Unit Owners or any other persons on or near property. The Association shall not be held responsible for any injury that results from participation in hazardous or potentially hazardous activity. This includes, but is not limited to, activity on or near balconies, windows, stairs, pools, dumpsters and parking areas.
- m.** The Board of Directors, its Manager, its workmen, contractors, or agents shall have the right of access to any Unit at any reasonable hour of the day for the purposes of making inspections, repairs, replacement or improvement or to remedy any condition which would result in damage to other portions of the building or for any purpose permitted under the terms of the Declaration or the Bylaws. Except in case of emergency, entry will be made by prearrangement with the owner. In the event the Association finds that there are vermin, insects or other pests, it may take such measures as it deems necessary to control or exterminate same.
- n.** Security cameras installed on private property will not be permitted to record or monitor images of common property or a neighbor's property

2. COMMON AREAS

- a.** Only homeowners who are in good standing with all common charges and assessments paid up to date, are permitted to use any of the association's amenities, including but not limited to pools.
- b.** Every member shall be liable for any and all damage to the common area and the property of the association, which shall be caused by said owner or such other person for whose conduct he is legally responsible.
- c.** The common areas should not be obstructed, littered, defaced, or misused in any manner
- d.** No baby carriages, strollers, bicycles, scooters or similar equipment may be left unattended in any portion of the common area.
- e.** No skateboarding, roller skating, roller blading, or bicycle riding is permitted on decks and pool areas.
- f.** Children of guests of homeowners who are visiting the community are the responsibility of the homeowner and must be supervised at all times while they are in common areas.
- g.** Homeowners are not permitted to use the common areas for parties and other events including the use of tents, chairs, tables, without written permission of the Manager.
- h.** No homeowner shall move, remove, add or otherwise change landscaping on common areas.

- i. Speeding on common grounds is not permitted. The speed limit is 15 mph.

3. MOVING IN & OUT RULES

- a. The Master Administration and the Manager of the relevant Sub-condominium Regime must be notified by each Owner via electronic mail or in writing prior to a move in/ move out. The notification requires at least seven days advance notice, indicating the day (s) and time of the moves, the name of the mover and the size type of the mover's vehicle.
- b. Owners are fully responsible for the actions of their mover and may be advised by the Master Manager of any restrictions or special requirements with respect to the move.
- c. Moving is restricted to the hours of 8:00 AM to 6:00 PM, Monday through Friday, Seven days a week.
- d. All crates, barrels, boxes and packing materials must be picked up from sight by movers, homeowners, or tenants. If necessary, a special pick up must be scheduled with the Manager.
- e. Owners are responsible for any damage resulting from their move in/move out irrespective of whether the damage was caused by themselves or their movers.
- f. Supervision of moving personnel is the responsibility of the Owner who is required to provide rest room facilities within the home as well as an interior location for rest breaks and meals. Under no circumstances will personnel be permitted to use Public Areas or Common Areas for rest or meal breaks. Personnel arriving in their own vehicles must park in a designated location. Personnel are expected to be properly attired. Noise must be kept to a minimum and no radios or amplified music is permitted.
- g. Owners are responsible for insurance relating to their move in/move out including liability coverage for and damage caused by their mover.

4. ADDRESS AND CONTACT INFORMATION

It is the obligation of Owners to keep their address and contact information including email address current with the Master Manager and the appropriate Sub Condominium Manager. Failure to do so may result in unpaid or late billing fees that are the sole responsibility of the Owner. Required contact information should include email, mailing address and phone number.

5. BUILDING

- a.** The home and area restricted to the homeowner s shall be maintained in good repair and overall appearance as determined by the Sub condominium Manager.
- b.** Owners planning renovation work within their homes must comply with the Design Guidelines.
- c.** No fence, gate, or structure visible to immediate neighbors shall be erected on the properties without the prior written consent of the Architectural Design Review Committee.
- d.** Each homeowner is responsible for the landscaping and maintenance of this own individual lot.
- e.** No alteration to the outside of the home may be made without the express written permission of the Design Review Committee. Anything that is altered with the committee approval must be maintained by the homeowner.
- f.** No awning may be placed on any part of any building unless approval has been obtained in writing by the Manager.
- g.** The Master Manager must be notified at least seven days in advance, in writing, of any renovation work naming the type of work, the contractor involved, and the day(s) and time of work.
- h.** Terraces, decks, privacy walls, driveways and walkways which are part of a homeowner's home, shall be for the exclusive use of that homeowner and shall be maintained and repaired by said homeowner at his or her sole cost and expense.
- i.** No homeowner shall install or permit to be installed any window mounted or through the wall mounted air conditioning unit in his home.
- j.** Owners are responsible for the actions of their contractor and their personnel and may be advised by the Master Manager of any restrictions or special requirements with respect to the work.
- k.** Renovation work is restricted to Monday through Friday between the hours of 8am to 6 pm, and Saturdays between the hours of 10am to 4 pm.
- l.** Owners are responsible for any damage resulting from renovation work irrespective of whether the damage was caused by themselves or their contractor.
- m.** Supervision of personnel is the responsibility of the Owner who is required to provide rest room facilities within the home as well as an interior location for rest breaks and meals. Under no circumstances will personnel be permitted to use Public Areas or Common Areas for rest or meal breaks. Personnel arriving in their own vehicles must park in a designated location. Personnel are expected to be properly attired. Noise must be kept to a minimum and no radios or amplified music is permitted
- n.** Homeowners are responsible for insurance relating to their project.
- o.** Owners are responsible for the removal of trash and all construction materials before those items become a nuisance and in no event less often than daily.
- p.** There are specific requirements with respect to work and delivery vehicles used during construction.

- q. Please note that certain types of work may affect the coverage of warranties by the Developer or contractor. To the extent this affects Common Areas warranties, this work will not be approved.
- r. Construction activities by the Developer will be conducted under the Manager's Consent.

6. PEST CONTROL

The Master Administration and Managers of the Sub-condominium will arrange for exterior pest control services that meet the PDM standards. Use of other pest control services is not permitted. Owners are responsible for, and required to provide, effective interior pest control services that meet PDM standards.

7. OCCUPANCY

For several purposes, primarily those of security, the Master Manager needs to be advised of unit occupancy.

Occupancy information will be provided by the Rental Program for all units participating in the Rental Program.

Owners occupying their home on a permanent or semi-permanent basis need to notify and register their Sub-condominium Manager of their occupancy start date and end date as appropriate. This can most easily be accomplished by visiting their designated Reception Area, and notifying the Receptionist on-duty. Please contact the Reception Area upon departure.

The occupancy per unit is defined as follows:

TYPE OF UNIT	TOTAL OCCUPANCY	TOTAL OCCUPANCY
Casa Luna	6	8
Casa Estrella	6	8
Casa Sol	8	10
Casa Mar	8	10
Casa Playa	8	10

Occupancy does not include children under 6 years old.

An Owner can have a registered guest at the unit when:

- a. The total amount of people per unit is not exceeded.
- b. They register properly at the reception, fill out the Registration Form and sign the compliance for the Manager Rules.
- c. At least one of the registered guests is of legal age (18 or older), and Adult occupants must carry ID and QR codes to show security upon request.
- d. Having no pets for short term renters, long term is considered of a rental agreement for 4 consecutive weeks or more, and dogs must be on leash at all times when in public.
- e. Having no visitors for short term renters.
- f. Rental occupants cannot use common areas of other sub-condominiums
- g. HOA Manager's Office Limitations
 - i. Not a rental office
- h. Written Rental Agreement
 - i. Must include all rules from Section 7 in bold
 - ii. A copy must be kept in the unit
 - iii. Must be provided to Manager upon request
- i. Property Manager Requirement
 - i. Owners must have an approved local property manager to support renters
- j. Owner Liability
 - i. Owners are liable for violations by their renters
 - ii. May face fines or other penalties as applicable for infraction(s)
- k. Additional Rules and Fines
 - i. HOA Manager may issue new directives to:
 - i. Control unauthorized access
 - ii. Impose fines for violations by owners or renters

8. PROPERTY TAXES

Each individual Owner is responsible for the payment of property taxes relating to their home.

9. NOISE

a. General

- i. No resident shall make or permit any disturbing noises in any home or do or permit anything which will interfere with the rights, comforts, or convenience of other residents.
- ii. All residents shall keep the volume of any radio, television, stereo, musical instrument or other sound producing devices in their homes sufficiently reduced at all times so as not to disturb other residents.
- iii. Written complaints should be directed to the Manager. The decision of the Administration will be final subject only to Board review.

- iv. Quiet hours are from 11pm to 8am.

b. Renovation hours

- i. House renovation hours are limited to:
 - 1. Weekdays: 8 a.m. to 6 p.m.
 - 2. Saturdays: 10 a.m. to 4 p.m.

c. Parties

- 1. All parties/gatherings at a casa, which includes more than 30 non-owners, must request approval from the HOA.
- 2. All live music/bands which are using amplifiers are not allowed at a casa.

10. VEHICLES

- a. The number of vehicles permitted per unit is limited to the parking spaces in the unit's garage.
- b. Vehicles of all types must be self-propelled and must be parked in the garage or the original driveway supplied by the Developer. However, these cannot be parked in the front, side or back yard. No trailers, motorhomes, or boats of any kind may be parked in any parking space or driveway. Trailers and boats must be stored in the homeowner's garage or designated area.
- c. Vehicles must be readily mobile.
- d. Unless inside the Unit garage, no long-term parking of vehicles in parking areas is allowed.
- e. Contractor and property manager vehicles are not permitted to park overnight in homeowner driveways. An exception is allowed only if the contractor or property manager is staying overnight at the residence.
- f. Speed limits must be respected.
- g. Children must be at least 12 years of age to operate electric or motorized vehicles, and either possess their own insurance or be covered under insurance of parent or legal guardian.
- h. Homeowners will be subject to fines and/or confiscation/towing at the vehicle owner/vehicle renter's expense in the following instances:
 - i. Vehicles which violate any manager rule or regulation.
 - ii. Children under 12 years of age driving.
 - iii. Children or adults driving recklessly in the sole opinion of PDM.
 - iv. Vehicles which damage other property.
 - v. Vehicles which, in the opinion of PDM, constitute a risk to the safety of the occupants or others.
 - vi. Vehicles carrying more than the number of passengers that can be accommodated seated.
 - vii. Vehicles which are parked occupying more than one space.

- viii. Vehicles parked in a manner that is considered dangerous and / or that restricts the access of emergency equipment will be removed on an expedited basis and an additional charge to the Owner will be incurred. If possible, the operator of the vehicle will be notified before it is removed however, the Master Manager will treat this as a courtesy only and is not obligated to make a notification.
- ix. Security personnel employed by or sub-contracted by the Master Manager may be used to enforce these violations. Owners may be cited for children driving, driving recklessly, and multiple violations will result in escalating fines.
- i. Overnight parking of trucks on streets is not permitted .Exception request may be made by contacting the Master Manager at least 24-hours in advance stating the reason for the exception request, the make, model and licenses number of the truck, the number of the truck, the number of nights it is to e parked overnight and the proposed location. Upon approval, a Parking Permit will be available for pick-up at the Master Manager's office and must be displayed on the vehicle.
- j. Electric carts operated on Common Areas and other secondary roads are required to carry liability insurance. Proof of insurance may be required by the Manager
- k. Repeat offenders may lose vehicle privileges.
- l. From time to time the Manager may issue temporary or permanent directives regarding parking so as to maintain parking in a safe manner that is consistent with local and state laws, regulations or governmental agreements

11. TRASH, GARBAGE DISPOSAL, RECYCLING & BUILDING MATERIALS

- a. For health reasons, homeowners and occupants must put garbage in secured plastic containers. Homeowners and occupants are required to store their garbage in their garage, except when leaving it at the curb the same morning before scheduled pickup.
- b. Recycling is encouraged. As soon as the recycling program starts, you will receive the specific instructions from the waste removal company.
- c. Once the garbage has been picked up, garbage containers must be returned to the garage by the end of the day of garbage pickup.
- d. All garbage shall be regularly removed from the Unit and shall not be allowed to accumulate.
- e. No Garbage shall be placed on the common elements or limited common elements outside the Unit.
- f. The owner must provide a Garbage receptacle with the specified standards.
- g. The owner must take out the garbage container only on the specified days.
- h. The owner will be responsible for taking out and taking in the garbage container.
- i. The owners will maintain the garbage containers in good condition and clean.

- j. Garbage is not to be left near the receptacles; garbage has to be placed inside them.
- k. No large items are to be left on or next to the receptacle.
- l. Fines for violation of garbage disposal rules and regulation will be assessed on a case by case basis.
- m. Regular trash pick ups are designed to accommodate trash generated in the normal course of living. Special pick ups are required for the removal of other trash, including but not limited to furniture boxes, packing materials, plastic sheeting, wrapping paper, moving materials, etc. A Benefited Assessment will be required for special pick-ups.
- n. Owners will be responsible for the acts of their guests with respect to trash regulation.
- o. No building materials or trash may be deposited or stored on a lot other than the owner's without the prior written approval of the Manager and the Lot Owner affected. Following the completion of construction, the lot must be returned to satisfactory condition.
- p. All building materials and trash must be kept in a safe, clean, and organized manner during the entire period of construction or renovation.
- q. All trash must be deposited or stored in appropriate containers to ensure that the trash stays contained in the container and that it is not a visible detraction from the neighborhood. This includes the storage of trash and building materials in homes under construction or renovation.

12. USE OF POOL AREA

- a. All homeowners and occupants, as well as their guests, who utilize these facilities, do so at their own risk.
- b. Children under 8 using the pool area must be closely supervised at all times.
- c. Homeowners and occupants as well as their guests, must clean up after themselves before leaving the pool area. All trash must be disposed of properly.
- d. Jumping or diving into the pools is not permitted.
- e. No splashing, running, or horseplay is permitted in or around the pools.
- f. No glass is permitted in the pool area, except for food serving glass/ceramic dishes, which will be permitted only under the pergola. Owners are responsible for their guests and renters; fines will be charged as per the Rules and Regulations. Clean-up costs, if any, will be charged to the owner (e.g. cost to empty and refill swimming pool, if necessary).
- g. Non-toilet trained children must wear swim diapers when using the pool.
- h. No pets are permitted in the pools or pool area.
- i. Only personal music players may be used to assure that no one else is disturbed.

- j. Smokers have to use ashtrays at all times. Smoking is not allowed while in the swimming pool or within 5ft of the pool's edge.
- k. The walkways around the pools must be kept clear of toys and personal belongings.
- l. The Manager and the Security Department have the authority to limit access to any individuals who in their sole opinion are disturbing others or are contributing to an unsafe situation.
- m. Pool Hours are from 7:00 am to 11:00 pm during April to November and 10:00am to 6:00pm from December to March
- n. Pool Parties:
 - i. A pool party is considered to be when:
 - a) The total number of guests at the pool is greater than the authorized number of people of the unit.
 - b) The guests are not staying at the unit.
 - ii. In order to have a pool party:
 - a) The owner should always be present. Without the owner no one can use the facilities even with their authorization. At least one owner or someone of his direct family is required to be present.
 - b) An Additional fee of \$20.00 USD per person above the number of guests allowed in the unit is charged to the owners every time there is a pool party.
 - c) There has to be a person of age at the party. No "underage only" people parties are allowed.
 - d) The Manager has the absolute discretion to both limit the total number of guests or to limit the total fees paid for any one pool party.
 - e) The Manager must approve all pool parties in advance

13. USE OF THE BEACH

- a. Owners, residents and others authorized may access beach areas via established walkways and paths.
- b. The Manager will establish rules and guidelines treating to acceptable beach activities and conduct
- c. There is no lifeguard on duty. Homeowners and occupants swim and use the beach at their own risk.
- d. No one is permitted to uproot and/or remove the natural plants from the beach.
- e. No boats may be launched from and or stored on the beach.
- f. Canoes and Kayaks may be launched from the beach but they may not be stored on the beach.

- g.** Homeowners and occupants, as well as their guests, must clean up after themselves when using the beach. No trash is to be left on the beach or in the water.
- h.** No fires or fireworks are permitted on the beach without prior permission.
- i.** Glass containers are not permitted on the beach at any time.
- j.** Bonfires are not permitted in any location other than the beach. Beach bonfires require a permit from the Master Manager which must be requested at least seven days in advance and indicating the times, days and location of the bonfire. Owners are responsible for physically supervising the bonfire at all times and for removing and properly disposing of debris afterward.

No motorized vehicles are allowed on the beach except for security and maintenance.

14. ANIMALS

a. Stray, Feral and Wild animals

- i.** Stray, feral, or wild animals may not be fed or otherwise attracted to the common areas or limited common areas. Stray and feral animals that are discovered in the outdoor common areas and limited common areas should be reported.

b. Pets. - Domesticated pets that may be kept inside the unit provided that they do not become a nuisance to any other Unit Owner are permitted.

- i.** The following pets are permitted:
 - a)** Cats and dogs
 - b)** Small birds
 - c)** Small caged rodents (gerbils, hamsters, etc.)
 - d)** Fish
 - e)** Any other pet approved in writing by the Board of Directors
- ii.** The following pets are not permitted:
 - a)** Any animal that is not permitted for possession or sale by any federal, state, or local agency.
- iii.** Homeowners shall be responsible for immediately picking up and disposing of their pet's waste in common areas.
- iv.** All dogs must be kept on a leash that is held by a responsible person when the dogs are not within the boundaries of an owner's property.

Owners may apply for an exception to this leash regulation, provided the dog is well behaved, there have been no negative prior incidences involving the dog, and the owner is able to present

- Positive references from two other property owners and

- If available, any documentation/evidence related to dog training

The HOA, in its sole discretion, may deny this exemption to any dog. If the off-leash exemption is granted by the HOA, the unleashed dog must be visible at all times to the person responsible for the dog.

Owners will be subject to the regulations, including potential fines and the revoking of the exemption for a period of 30 days, if there are any infractions. To regain the leash exemption, a new application and references must be submitted for approval.

Please know ALL dogs, including those that have obtained a leash exemption, must be on a leash at all times in pool areas, restaurant areas, and any and all public areas of congregation.

- v. All cats and dogs must be registered with the Manager and must wear a collar with nametag containing the name of the owner. This is for protection of the pet, as well as the homeowners.
- vi. Pets must be well kept. Pets may not adversely affect the health or enjoyment of the common areas. This includes, but is not limited to, noise, odor, or waste spillage in the common areas or the limited common areas of other residents.
- vii. Pets found unattended in the common areas or limited common areas of other residents will be turned over to Animal Control.
- viii. The pet owner is solely liable for any damage or injury caused by the pet. In particular, the pet owner shall indemnify and hold harmless the property, its Officers and employees from any liability caused by the pet.
- ix. The Owner's Association, its Officers, its employees, emergency personnel and repair personnel, may occasionally enter a particular unit during the regular course of business, or during an emergency. While such persons shall take reasonable precautions to prevent injury or loss of a pet, the pet owner shall indemnify and hold harmless the aforementioned persons from any liability caused by the injury or loss of the pet.
- x. Violations of pet requirements may result in penalties, at the discretion of the Manager. Repeated or egregious violations may result in the eviction of the pet(s), at the discretion of the Manager.
- xi. All dogs and cats must be fully inoculated.

c. Service animals

- i. Paraiso del Mar will comply with all local, state and federal laws in regard to service animals.

- ii. The owner of the service animal is solely liable for any damage or injury caused by the service animal. The owner of the service animal shall indemnify and hold harmless the Paraiso del Mar Unit Owner's Association, its Officers and employees from any liability caused by the service animal.

Security personnel employed by or sub-contracted by the Master Manager may be used to enforce this requirement. Owners may be cited for off-leash pets and/or multiple violations will result in escalating fines.

15. SECURITY

The Master Condominium Regime provides security service for Paraiso del Mar.

16. BOAT TRANSPORTATION

Boat and Land transportation provided by the Homeowners' Associations are only for homeowners who are current in their assessments and their guests.

- a. An owner's guest is a person that goes only to a particular unit and is authorized by the owner to visit the unit. Workers hired by the owner's will be considered guests of the owners and will be allowed on the boats provided they are not carrying any tools and prior notification has been given by the homeowner or homeowners' property manager. This will be closely monitored by HOA management to make sure it is not being abused. Owners' will have first priority on both boat and land transportation vehicles followed by guests and workers respectively.
- b. All Property Managers and/or their representatives are required to register with the manager, so the sub-manager will maintain a list of approved property managers. This list will be given to the boat captain(s). All property managers will be allowed access to boat transportation on a space available basis. Owners and their guests will have priority.
- c. Baby or pet sitters working for owners or their guests may use the boats.
- d. HOA authorized employees are allowed to use the transportation.
- e. All third-party service providers carrying tool or construction equipment must travel by land to the property.
- f. The homeowners' association office should receive email notification in advance informing the office of the use of the unit by a guest or renter whenever possible. Guests arriving without prior notification by the owner will be allowed over to the property but will not be allowed access to owner's unit until confirmation from the owner is received. The guest will be responsible for contacting the owner in order for the owner to provide the authorization to the HOA. Only with

this notification will the guest be allowed to enter the unit. Names of all guests must be included or the number of guests and the principal contact name must be included. Owners delinquent in their assessments will be notified in advance when their use of the boats has been restricted as per the Rules & Regulations.

17. SPECIAL EVENTS

The Master Manager and the Managers of the Sub-Condominiums may permit portions of the Common Areas to be utilized for special events from time to time when the determination is made that the event benefits Paraiso del Mar or the community in general.

Efforts will be made to advise individuals including Owners who may be affected by these events. However, no guarantee of advance notice may be provided.

In some cases, these special events may result in the closure, or restricted access, of Common Areas of the Master Condominium to the public or Owners.

Portions of the Common Areas may be rented to third parties from time-to-time based on a fee schedule developed by the Master Manager or, as the case may be, Manager of the relevant Sub-Condominium, for uses that are compatible with the surrounding areas. These rentals will be permitted only after considering the impact on Owners and their guest and will not be allowed to significantly and negatively affect the quality of the Paraiso del Mar experience.

All Special Events must be approved in advance by the Manager who will create detailed rules and guidelines for both the consideration of the Event and the operation of the event including hours, entertainment, music and other details.

17.1 Parties and Large Gatherings

- a. Advance Notice and Approval Required:** Residents must notify the HOA at least 7 days in advance of any gathering or party expected to exceed 30 attendees, which will require prior written approval from the HOA Manager.
- b. Frequency:** Parties exceeding 30 attendees may not occur more than twice per month per household.
- c. Time Restrictions**
 - a. Start Time: Parties may not begin before 10:00 AM.
 - b. End Time: All events must conclude by:
 - i. 10:00 PM Sunday–Thursday
 - ii. 11:00 PM Friday–Saturday and holidays

d. Noise Control

- a. Volume Limits: Music must be kept below 70 decibels at the property line.

e. Live Entertainment: Not allowed.

f. Quiet Hours: Strict quiet hours begin at 10:00 PM on weekdays and 11:00 PM on weekends.

g. Parking and Traffic

- a. Guest Parking: Guests can use street parking where permitted.
- b. No Blocking: Driveways, they must always be unobstructed.

h. Clean-Up and Damage

- a. Post-Event Clean-Up: All trash, decorations, and equipment must be removed within 12 hours of the event.
- b. Property Damage: Residents are responsible for any damage caused by guests to common areas or neighboring properties.

i. Safety and Conduct

- a. Alcohol Use: Must comply with local laws; underage drinking is strictly prohibited.
- b. Fire Hazards: Fireworks and wood burning bonfires are not allowed without HOA approval.

j. Enforcement and Penalties

- a. Violations: May result in fines ranging from \$100 to \$500 USD depending on severity and recurrence.
- b. Repeat Offenses: Three violations within 12 months may result in suspension of party privileges.
- c. Appeals: Residents may appeal fines or restrictions in writing within 10 days of notice.

18. WEATHER EMERGENCIES

During periods where Hurricane or Tropical Storm Warnings are in effect it is the obligation of all the homeowners to secure exterior furniture, fixtures or equipment in a manner that they will not represent a threat to other homes by being launched airborne by high winds.

Storm shutters may be attached upon official notification of a Hurricane or Tropical Storm warning. Within 72 hours of the passing of a storm, the shutters must be detached and stored out of view of the community.

19. ASSESSMENTS & PAYMENTS

Annual HOA Assessments are established and approved at the annual Owner's Meeting the prior year, which is generally held in November. Payments are made quarterly: 1/4th of the annual assessments due each calendar quarter. The Assessments are denominated in U.S. dollars, but may be paid in either U.S. dollars or Mexican pesos at the exchange rate quoted on the remittance date. Pre-authorized credit card payments or direct bank drafts are encouraged to ensure timely remittance of quarterly assessments. Owners may obtain pre-authorization forms from the Community Manager (hoapdm@gmail.com). Personal checks may also be used, but the check must be sent to the Associa lockbox in the U.S.

All owners' accounts will be administered in accordance with the following rules:

1. Quarterly HOA assessments are billed on the first day of each quarter (January, April, July, and October).
2. Owners are given until the end of the billing month to remit their quarterly assessments to the HOA.
3. If payment in full is not received by the HOA by the end of the billing month, the owner's HOA account will be deemed delinquent.
4. Delinquent accounts will be charged a US\$150 administrative fee and interest at the rate of 15% per annum, non-compounded. An additional US\$150 administrative fee will be charged each subsequent month a delinquent balance exists.
5. The HOA Board has the authority to file liens on casas with delinquent accounts that exceed 180 days and/or US\$5,000. In these cases, the Board may also file the delinquency with the owner's home country credit agencies. If deemed appropriate, a lien foreclosure may be filed.

Unpaid assessments, fees, interest or penalties shall not be discounted or settled for less than payment in full, unless the Board passes a resolution to do so. No single Board member, HOA employee, or Associa employee has the authority to offer, negotiate, or accept a discounted settlement.

All casas owned by multiple owners must designate one owner to be accountable and responsible for all financial obligations.

Any and all funds received by the HOA will be applied to an owner's account in the following order: fines, fees, interest, oldest unpaid assessments, and lastly to the newest unpaid assessments.

Owners of units with delinquent accounts may NOT:

- Vote or participate in owner meetings
- Submit an application for approval to the ADRC
- Serve as any elected HOA representative, nor be a candidate.
- Use common assets, including, but not limited to boats, vans, swimming pools, WiFi, bandwidth and infrastructure, tennis/pickleball courts, soccer fields, and all common areas except as required by law.

20. FINES & VIOLATIONS

Architectural Design Review Committee (ADRC) Violations and Fines. From time to time Owners and other Occupants may be in violation of one or more of the requirements within the Master Condominium Rules and Regulations, the Sub-Condominium Regulations or these Administrative Rules and Regulations. When this occurs, the following action will take place.

Upon being made aware of the violation the Master Manager or Sub condominium Manager, as the case may be, will contact the Owner. Depending on the nature of the issue this contact may be in person, in writing, via email or by telephone. The nature of this first contact is to make the Owner or Occupant aware of the violation and create the framework for a solution.

If the violation is not corrected within 72 hours, a formal written Notice of Violation will be issued by the Administration. This notice will indicate the nature of the violation and provide the additional 72 hours for correction. In unusual cases the Master Administration or Sub-condominium Administration may provide an additional 96 hours to correct the violation. In both cases of additional time to correct, these extensions are based upon an irrevocable agreement to correct the violation. They do not provide additional time to protest the violation.

In the event the corrections are not made within 72 hours or the extended correction period provided, the violation is subject to fines:

NOTICE	FINE
First Notice of Fine	\$25.00 USD per day
Second Notice of Fine	\$100.00 USD per day
Third Notice of Fine	\$250.00 USD per day

The first Notice is issued upon expiration of the correction period. Fines are levied as Penalty Assessments against the Owner and will be collected by the Master Manager or Sub-condominium Manager, as the case may be. Nonpayment of Penalty Assessments will result in collection action as described elsewhere in this document.

In the case of fines based on actions potentially impacting the safety and security of the owner's and guests, all waiting periods may be waived and additional penalties may be imposed.

Use Violations and Fines. Upon becoming aware of a Use violation (e.g. dogs off leash, excessive noise, glass in the pool area, smoking in the pool, unsupervised children, etc.), the Manager will inform the owner or occupant (which shall be deemed as notice to the owner) of the violation

- in person,
- in writing (mail, email, personal delivery, or posted on unit door), or
- by telephone

This is a warning and will not result in a fine being levied if corrective action is taken immediately. However, it will be considered a violation nonetheless and fines will be assessed and charged to the owners HOA account under the following circumstances,

- If the violation is not cured immediately, a US\$25 fine will be charged to the owner's HOA account.
- Any subsequent violations of the same type (e.g. dogs off leash, excessive noise, glass in pool area, smoking in the pool area, unsupervised children etc.) within three months will result in a US\$25 fine, which will be increased by US\$5 for each subsequent violation (maximum of US\$250/day).
- If an owner receives three violations of any kind, within 12 months, regardless of whether the violations resulted in warnings or fines, the fourth and all subsequent violations will result in a US\$25 fine, which will be increased by US\$5 for each subsequent violation (maximum US\$250/day).

21. UNAUTHORIZED USE OF ELECTRICITY AND WATER

Strict fines will be imposed for the unauthorized use of electricity or water from homes or Common Areas by the Master Condominium Regime. In cases where an electricity theft is committed by construction workers or contractors, an official report will be made and the Master Condominium Regime will charge the offending contractor.

The amount will be due within 15 days from the date of notification.

22. DESIGN REVIEW COMMITTEE (DRC)

The Design Review Committee is responsible for a wide range of approvals and opinions relating to the ambience and operation of Paraiso del Mar. The Master Condominium Rules and Regulations make it the responsibility of each Owner to seek approval for any modifications or improvements that are Visible from Neighboring Property. The definition of Visible from Neighboring Property makes no distinction between permanent and temporary uses.

23. BOARD SPENDING RESTRICTIONS

The Polygon A Management A. C. Board of Directors (Board) is restricted from spending greater than \$20,000 USD for unbudgeted or non-replacement Goods and/or Services with the exception of an emergency being declared by the Board of Directors.

24. SURVEILLANCE COMMITTEE

1. The role of the Polygon A Surveillance Committee, in compliance with the Condominium Regime Master and Sub-condominiums Rules and Regulations Section 11.0, is to monitor Polygon A Financials and Board activities to ensure that all activities are compliant with the governing Rules and Regulations.
2. The Surveillance Committee must notify the Board of any potential rule infractions or financial discrepancies. The Board will have fifteen (15) days to respond to the Surveillance Committee addressing areas of concerns with an explanation or an action undertaken to resolve the matter of concern.
3. If the Board does not satisfactorily address the Surveillance Committee's concerns, the Surveillance Committee can utilize all rights available to act in accordance with the Condominium Regime Master and Sub-condominiums Rules and Regulations to resolve the matter of concern.

25. HOMEOWNER VOTING PROXIES

1. All Casas are required to have a current Proxy on file with the HOA. If a homeowner attends the HOA Meeting the proxy will not be used.
2. Proxies are required to ensure that a Quorum is achieved, and the HOA Meeting can be legally convened.
3. A reminder notice to amend or change a proxy on file will be sent to all homeowners prior to the HOA Annual Meeting.